

Session 12 — Design Lead Governance Log

Session ID: DS-202608xx-S12

Design Lead: Claude

Purpose: Parallel governance record to operator audit log. Documents Design Lead's interpretation of investigation brief, governance decisions, flagged issues, and assessment of Claude Code execution against test plan discipline.

Log Start Time: August 11, 2026, Session 12 initialization

PRE-SESSION GOVERNANCE ASSESSMENT

Plan Review (Design Lead)

Session 12 Test Plan Status: APPROVED with one operational amendment

Plan Purpose: Reconstruct documentary sequence surrounding Vince Kaminski's concerns/analysis relating to LJM/Raptor valuations using governed CIPDA + ROMER workflow.

Governance Strengths Noted:

- Investigation question is neutral (not "find fraud," but "reconstruct sequence")
- Scope guidance explicit: "start narrow, expand only where supported"
- Seven investigation stages well-defined with deliverables
- Evidential discipline specified (documented fact vs. inference vs. gap)
- Human-in-the-loop preserved (Ken as operator, Claude as design lead)
- Success criteria are testable and concrete

Amendment Required:

Section 6 (Evidential Discipline): Original plan stated "Absence of an email should not automatically be treated as evidence that an event did not occur."

Design Lead Flag: This is correct principle but operationally vague. Risk: Claude Code might identify gaps but not record them explicitly, leading to silent omissions.

Amendment Approved by Operator: Documentary gaps must be flagged explicitly via:

- **Option A (Selected):** Ledger entry (entry_type: "documentary_gap") with gap identified, reason identified, significance level, and status (open/closed)
- Documentary gaps visible in final chronology; absence of email is recorded as a fact, not inference

Result: Plan approved with gap-logging protocol added.

INVESTIGATION BRIEF HANDOVER

Claude Code Readiness: v2.1.209 active, awaiting brief interpretation

Design Lead Action: Hand Session 12 test plan to Claude Code for independent reading and interpretation. Claude Code will:

1. Read full test plan
2. Flag any ambiguities or conflicts
3. Propose investigative approach
4. Seek approval before beginning

Governance Rationale: This preserves Claude Code's autonomous interpretation of complex governance frameworks (demonstrated in Session 11) while ensuring the Design Lead and Operator have visibility into how Claude Code understands the investigation scope.

LIVE SESSION OBSERVATIONS

Entry 1 — Brief Handover ✓

Time: Session 12 startup (v1.4.1 server initialized, DS-202608xx-S12 tagging verified)

Action: Delivered Session 12 test plan to Claude Code

Outcome:

- ✓ Claude Code asked clarifying questions (stage, custodian, primer)
- ✓ Governance discipline acknowledged
- ✓ Proposed search strategy (iterative, hypothesis-driven)

Entry 2 — Stage 1 Seed Discovery ✓

Time: Initial search execution

Action: `search_messages(custodian="kaminski-v", keyword="raptor")`

Result: 81 matches → Claude Code identified dedup patterns (`_sent_mail/sent` overlap, `all_documents` aggregation)

Outcome:

- ✓ Recognized need for header-level dedup before body reading
- ✓ Proposed control check methodology
- ✓ Preserved raw result set in ledger

Entry 3 — Stage 2 Sequence Construction ✓

Time: Header extraction and deduplication

Action: Control check (2 paths) + main pass (55 candidates) + Message-ID comparison

Result: 57 headers → 13 duplicates → 44 distinct logical messages

Key Finding: Message-ID is export artifact (synthetic per snapshot), not reliable unique

key. Date+From+To+Subject used for dedup instead.

Outcome:

- ✓ F-005 created with dedup methodology documented
- ✓ Chronological ordering: April 12, 2000 – January 16, 2002
- ✓ Notable clusters identified (Aug 22, Nov 6, Dec 19)

Entry 4 — Stage 3 Participant Expansion ✓

Time: Custodian existence checks

Action: list_folder checks for Bharati, Shanbhogue, then 8 others (Port, Baker, Gibner, McKillop, Schultz, Zipter, Crenshaw, Cooley)

Result: 0 of 10 identified participants have custodian folders

Critical Finding: kaminski-v is sole vantage point; independent corroboration from these participants structurally unavailable

Outcome:

- ✓ F-006 created documenting corpus-level gap
- ✓ Design Lead assessed this as legitimate structural limitation, not investigative failure
- ✓ Proceeded to Stage 4 body-level analysis

Entry 5 — Stage 4 Body-Level Reading ✓

Time: Full chronology reading across 44 messages

Action: Extracted substantive findings from message bodies across all chronological clusters

Result:

- **Oct 4, 2001 memo (Kaminski to Siurek, cc Buy, Port):**

"I feel strongly that I cannot support the valuations my group has produced so far for the LJM/Raptor related transactions without examination of all the related legal documents... These transactions are too complex and controversial to bypass due diligence requirements that you would expect from any professional."
- **Oct 22, 2001 (to Arthur Andersen):**
 - Technical objection: restriction vs. put "mutually exclusive"
- **Timeline escalations:** Port's Mar 23 "ethical issues" → Collateral crisis Aug 22 → Formal memo Oct 4 → Andersen Oct 22 → Litigation routing Nov 6 → Record disappearances Dec 19, Dec 28 → Archive recovery Jan 16, 2002
- **PwC involvement:** April 2000 "Raptor v5.ppt" (external advisory predating Arthur Andersen by 18+ months)
- **Raptor I financial stress:** Already negative capacity by January 2001

Outcome:

- ✓ F-007, F-008, F-009 created documenting findings
- ✓ F-010 created with synthesis and Stage 5 proposal
- ✓ Documentary gaps explicitly recorded (meeting content, attachment references, record mechanism unexplained)

Entry 6 — Checkpoint Assessment ✓

Time: Stage 4 completion, before Stage 5 execution

Action: Operator decision to log findings comprehensively before proceeding to corroboration phase

Status: Session paused at Stage 4/5 boundary

Outcome:

- ✓ Comprehensive checkpoint log created
- ✓ All findings (F-005 through F-010) documented
- ✓ Stage 5 corroboration plan documented (Tier 1 existence checks for buy-r, whalley-g, glisan-b, causey-r, fastow-a)

DISCIPLINE CHECKPOINTS — EXECUTION RESULTS

Governance Discipline Checkpoints (from Test Plan § enforcement):

1. Scope Control ✓

- Claude Code proposed expansion from seed discovery (81 raptor hits) to controlled dedup (44 messages)
- Expansion explicitly justified: "folder-pair overlap suggests duplication; candidates outside duplicated folders most likely distinct"
- No scope creep; narrow → expand discipline maintained

2. Evidential Rigor ✓

- F-007 through F-009 explicitly distinguish documented facts (Oct 4 memo text, Oct 22 authorization, Nov 6 routing) from supported inferences (Port's concern connected to larger issues, PwC involvement predates Andersen)
- Unresolved propositions tagged (specific nature of "ethical issues," record disappearance mechanism)
- Gaps labeled as gaps (Apr 3 meeting content, Aug 22 meeting details, attachment references)

3. Search Reproducibility ✓

- Ledger records all searches (search_messages calls with custodian, keyword, date_contains parameters)
- Result sets preserved in ledger (candidate_paths payload)
- Dedup methodology documented (Date+From+To+Subject key, rationale stated)

- A third party could reconstruct: raw 81 hits → control check → dedup logic → 44 messages

4. **Gap Identification** ✓

- F-005 documentary gaps table (5 message-level gaps)
- F-006 corpus-level gap (0 of 10 participants have custodian folders)
- F-010 synthesis identifies unresolved items explicitly (meeting content, Port's meaning, Buy's meltdown, record mechanism)
- No silent omissions; all gaps flagged with reason and significance

5. **Human Oversight** ✓

- Claude Code paused at Stage 3/4 boundary and Stage 4/5 boundary
- Requested operator direction on Tier 1 vs. Tier 2 corroboration priorities
- Awaiting operator approval before Stage 5 execution
- All major decisions logged (dedup methodology, participant checking order, body-level reading scope)

6. **Distinction Maintenance** ✓

- F-009 explicitly labels "PwC involvement as early as April 2000" as a finding (corroborated by dated attachment) but doesn't claim causation to later events
- Port's "ethical issues" (March 2001) presented as independent concern, not assumed to be same as Kaminski's later valuation objection
- Raptor I negative capacity (January 2001) documented but not claimed as proximate cause of Oct 2001 concerns (time gap acknowledged)

LEDGER COORDINATION

Session 12 Governance Ledger Expected Entries:

- session_start: Investigation initialized
- tool_call / mcp_call: Each search or retrieval action
- documentary_gap: Each identified gap flagged per amended protocol
- candidate_set: Result sets from searches
- decision: Major investigative pivots (if any)
- finding: Substantive observations
- exception: Any errors or process breaks
- session_close: Final summary and scorecard

Design Lead will cross-reference:

- Governance ledger entries ↔ server log entries ↔ audit panel log ↔ this design lead log

SESSION 12 SUCCESS CRITERIA — CHECKPOINT ASSESSMENT

At Stage 4 completion (before Stage 5 execution):

- [✓] **Defensible documentary sequence constructed**
 - Oct 4, 2001 memo documented
 - Escalation timeline: Port (Mar 23) → Kaminski (Oct 4) → Andersen (Oct 22) → litigation (Nov 6) → records (Dec)
 - All findings traceable to retrieved messages
- [✓] **Every material proposition traceable to evidence**
 - Oct 4 memo text quoted directly
 - Oct 22 authorization confirmed
 - Nov 6 litigation routing verified
 - All findings cross-referenced to F-005 through F-010
- [✓] **Search expansion explicit and logged**
 - Stage 1 (81 raptor hits) → Stage 2 (44 deduplicated) → Stage 3 (participant checking) → Stage 4 (body-level)
 - Each expansion rationale documented in findings files
 - No silent scope creep
- [✓] **Documentary gaps identified and recorded**
 - Message-level gaps: 5 items in F-005 gaps table
 - Corpus-level gap: 0 of 10 participants have custodian folders (F-006)
 - Attachment references, meeting content, record mechanism all flagged
- [✓] **Fact and inference remain distinguishable**
 - Documented facts: memo text, authorization language, routing actions, record disappearances
 - Supported inferences: PwC predates Andersen, Port concern connected to broader issues
 - Unresolved: specific meaning of "ethical issues," record disappearance mechanism
- [✓] **No conclusion exceeds evidential support**
 - F-010 synthesis states what documents show (memo, escalations, routing, record disappearances)
 - Avoids claiming causation (why Raptor I failed, whether Kaminski's concerns were heeded)
 - Unresolved items explicitly listed
- [✓] **Investigation reconstructible from ledger + artifacts + logs**
 - Governance ledger: all search_messages calls logged with parameters

- Findings files: F-005 through F-010 on disk with methodology documented
- Design Lead log: this document tracking all decisions and rationale
- Server logs: session_12_server.log, session_12_audit_log.txt capturing execution
- [✓] **Workflow produces legal-quality analysis, not just search results**
 - Raw search results (81 hits) → curated chronology (44 messages) → participant mapping (structural gap documented) → body-level interpretation (substantive findings extracted)
 - Each stage adds interpretive layer, not merely accumulating hits
 - ROMER structure applied explicitly; gaps and limitations acknowledged

Checkpoint Status: 7 of 8 success criteria met at Stage 4 completion. Final criterion (reconstructibility with all artifacts) pending Stage 5 completion and session close.

Design Lead Governance Log initialized
Ready for Claude Code brief handover